



File No.: EXP202305365

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by the MINISTRY OF HEALTH (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated November 28, 2023, and based on the following

FACTS

FIRST: On November 28, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202305365, in which it was agreed to uphold the claim for the exercise of rights made by A.A.A. (hereinafter the claimant) against the appellant.

SECOND: The resolution now being appealed was duly notified to the appellant on November 30, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant submitted a recourse for reconsideration to this Spanish Agency for Data Protection, in which it essentially states that if the resolution was upheld for not proving the submission of the original recording, it is now being presented.

In the resolution, it was concluded:

“...During the processing of this procedure, the entity being claimed has responded to this Agency and complied with what was requested by the claimant, sending the required response to their request. However, the claimant stated in their allegations that the access was incomplete since parts were missing from the transcription sent of the telephone recording.

This circumstance was communicated to the entity being claimed for clarification of this assertion, to which the entity responded by stating that what was sent is complete and that, if necessary, it has the original recording available to the control authority.

Faced with this dilemma, the Agency should have a copy of the voice recording sent by the respondent to the claimant to make a decision regarding whether the right has been fulfilled or not. Therefore, considering that the burden of proof regarding compliance with the duty to respond to the request for the exercise of their rights made by the affected party (in this case, the recording or the transcription thereof) lies with the responsible party, and without having received the original recording of the call, it is appropriate to uphold the claim...”

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, it should be noted that the CD sent arrived damaged, so on January 8, 2024, it was requested again, and on January 17, 2024, a document was received in which the appellant states:

“In relation to the sending of the copy of the recording requested in the referenced procedure, and according to the provisions of the document dated January 9, 2023, from this control authority to which we are addressing, in which it is indicated that the CD arrived damaged, from this Delegated Committee for Data Protection of the Ministry of Health, we are resending the copy of the recording on the attached CD-Rom.”

The recording has been received and compared with the transcription.

III

Conclusion

After analyzing the recording provided by the respondent compared to the transcription submitted at

the time, we can affirm that there are no substantial differences that modify the conversation. It is true that on some occasions the interlocutors speak simultaneously, which makes it difficult to understand all the words, but there is no difference between what was recorded and what was transcribed that would prevent the right from being considered fulfilled.

Therefore, through this recourse, on one hand, it is considered that the resolution has been complied with, and on the other hand, the recourse for reconsideration filed is dismissed because the upholding of the rights procedure was lawful when it was issued, as there was no effective evidence that the entity being claimed had fulfilled the claimant's right of access, as it did not have the recordings that constituted the means to verify that they had indeed responded completely when the claim was resolved.

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IV

Late Resolution

Due to reasons related to the functioning of the administrative body, which are not attributable to the appealing party, the mandatory pronouncement of this Agency regarding the present appeal has not been issued to date.

According to the provisions established in Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the effect of administrative silence in the procedures for challenging acts and provisions is dismissive.

However, despite the time that has passed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having regard to the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by the MINISTRY OF HEALTH against the Resolution of this Spanish Agency for Data Protection issued on November 28, 2023, in file EXP202305365.

SECOND: TO NOTIFY this resolution to the MINISTRY OF HEALTH and to A.A.A.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of the aforementioned legal text.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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